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General Comment

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To Whom It May Concern,

I am writing as a concerned citizen who has witnessed firsthand the growing threat posed by the unchecked development and deployment of AI systems by Big Tech companies like OpenAI (Microsoft) and Google. These companies are pushing for changes to copyright law that would undermine the rights of creators and small businesses across the country, jeopardizing livelihoods and stifling innovation.

AI systems are only able to function because they are trained on vast amounts of creative work produced by individuals. This work—created through years of skill development, hard work, and dedication—has been taken without consent, compensation, or credit, and fed into these AI systems. These systems then reassemble and reproduce the work, selling it back to the same markets that creators rely on for their income. In doing so, they directly compete with the very people whose work they exploited, cutting creators out of the marketplace entirely.

Now, these Big Tech companies are lobbying for special carve-outs in copyright law to legitimize this practice. They argue that if a machine ingests and reproduces copyrighted material, it should be considered “fair use.” This is a dangerous precedent. It suggests that anything and everything on the internet—regardless of who owns it—should be free for Big Tech to take and profit from. They claim that without these exemptions, American innovation will be stifled.

The truth is the opposite. The purpose of copyright law is to protect the incentive to create and innovate. If creators cannot own their work, and if everything they produce online can be freely taken and monetized by Big Tech, what incentive will there be to create? Why would anyone invest time, energy, and resources into developing new ideas, designs, or innovations if they know their work will be immediately exploited by corporations like Google and Microsoft?

To truly protect American innovation, we must protect American creators. This administration’s AI Action Plan should not prioritize the interests of Big Tech companies at the expense of creators. Instead, it should focus on ensuring a fair and competitive marketplace that respects the rights of individuals and small businesses.

Here are three key steps the AI Action Plan should take:

1. **Require Effective Consent:** Creators must have the right to decide when and how their work is used by AI systems. No work should be ingested or reproduced without explicit permission from the original creator.
2. **Encourage a Licensing Marketplace:** A robust licensing system should be established to ensure that creators are fairly compensated for the use of their work. The economic value generated by creative work should benefit the creators, not just Big Tech companies.
3. **Ensure Transparency:** Big Tech companies must be required to disclose what material is included in their training datasets and clearly

label AI-generated content. This transparency is essential for accountability and fairness.

I want to be clear: I am not anti-technology or anti-AI. These systems have incredible potential and can be powerful tools for innovation. However, we cannot allow their development to come at the expense of hardworking Americans. Rewriting copyright law to benefit Big Tech at the expense of creators is not the path forward.

Thank you for the opportunity to comment on these critical issues. I urge you to prioritize the rights and livelihoods of creators and small businesses as you shape the future of AI policy.

Sincerely,

Alex Starbuck